

November 15, 2018

Gina Symsek  
Brecksville-Broadview Heights Board of Education

Dear Ms. Symsek,

Per our conversation yesterday, I am writing you this letter to confirm the agreements that are being put into place for the screening and counseling/therapy available at the school district. Jackie will be starting to work in the high school and on the screening as of January 3, 2019. Before then, she will meet with your staff at the high school to set up a plan for referrals, the paperwork and procedures for referrals for counseling. This way we will start the process ahead of her being at the building and have students for her to see in therapy when she starts after the new year.

Per the universal screener, it was our conversation to break costs out for the district. As such, the proposal will be changed to reflect the district will buy the testing/screening directly. The cost is estimated at \$11,124. This will come out of my proposal costs to you.

Secondarily, Jackie will be available as of January 3, 2019 for 25 hours a week as requested, not 30 hours per week, for eight weeks paid by the district and available to assist with the feedback from the testing, to work with the universal screener and the follow-up with parents as needed. We agreed that this time could be extended as agreed upon by both parties if needed.

I have applied the discount of \$11,124 that the district will pay for the testing and a discount of \$3,200 to the proposal based on 25 hours a week, rather than 30 for eight weeks.

As such the cost of the district to Jay Berk, Ph.D. and Associates would be \$20,862 for the time associated with the screening including the work we have done to date and eight weeks of support at 25 hours per week by Jackie backed up by myself.

Jackie's time with therapy starting at the high school and likely extending to middle school will be reimbursed by parent's insurance. If parents do not have insurance that is covered, they can be referred out of the district or the district can opt to pay for them for therapy if they wish to.

Jackie will also, as part of the contract, offer one group per week at no cost to the district. This group will be based upon what is decided by Jackie, the principal and the counselors at the high school. A meeting will be scheduled to discuss this information.

letter to Gina Symsek

Page 2

I look forward to us beginning the process of doing the work we have discussed. I think this letter covers all the details that we discussed in our phone call today. I look forward to a long partnership between our organizations.

Sincerely,

Jay H. Berk, Ph.D.

President, Jay Berk Ph.D. and Associates

JHB/cas

## **Brecksville-Broadview Heights School District Service Agreement**

This Agreement made on the 29<sup>th</sup> day of November, 2018, between Jay Berk Ph.D., Inc., 23293 Commerce Park, Beachwood, OH 44122 ("Jay Berk, Ph.D., Inc.") and the Brecksville-Broadview Heights School District ("Board" or "District") is made for the purpose of providing a service to the Board.

### **1. SERVICES TO BE RENDERED**

To meet the objectives under this Agreement, Jay Berk, Ph.D., Inc. and the Board agree to the following:

- A. Jay Berk Ph.D., Inc. will provide individual therapy to students at no cost to the district, as families will be responsible for payment. The district will provide appropriate office space for such services at no cost to Jay Berk Ph.D., Inc.
- B. Jay Berk Ph.D., Inc. will provide group 1 time per week free of charge to the district. Jay Berk Ph.D., Inc has the right to decline any student not appropriate for such services.
- C. Jay Berk Ph.D., Inc will provide information about a student to District only with properly signed and executed (HIPAA) release by students' parent or guardian.

Additional services or modifications to the services stated above shall be at the mutual discretion of both Jay Berk, Ph.D. Inc. and the District, and may or may not affect additional charges for such services or modifications.

### **2. TERM**

This Agreement shall be in force November 29, 2018, through May 30, 2020, provided, however, that Jay Berk, Ph.D., Inc. or the Board may terminate this Agreement prior to the end of the term for any reason whatsoever upon thirty (30) calendar days written prior notice to the other party. This Agreement may be renewed at the end of the term by written agreement of the parties.

### **3. COMPENSATION**

The Board agrees to pay Jay Berk, Ph.D., Inc. an amount not to exceed zero dollars.

The Board is not liable in any manner for expenses incurred by Jay Berk, Ph.D., Inc. through its utilization of third-party contractors to carry out its operations, or as a result of its staff being unavailable due to illness or any other reason.

### **4. PERSONNEL BACKGROUND CHECK**

Jay Berk, Ph.D., Inc. and every on-site therapist identified as Jay Berk, Ph.D., Inc.'s employees, officers, agents, independent contractor, subcontractors, or student teachers providing any service to a Student must successfully complete a criminal background check prior to rendering services.

5. **INDEPENDENT CONTRACTOR**

Jay Berk, Ph.D., Inc., and the Board acknowledge and agree that Jay Berk, Ph.D., Inc. is an independent contractor and has no authority to bind the Board or otherwise act as a representative of the Board. Jay Berk, Ph.D., Inc. shall retain the right to exercise full control and supervision over its employees, officers, agents, independent contractors, subcontractors, or student teachers, their compensation and their discharge, and agrees to be solely responsible for all matters relating to its employees, officers, agents, independent contractors, subcontractors, or student teachers.

The District will not offer employment or hire as an employee, nor contract with directly or through a third party, any employees, officers, agents, independent contractors, or subcontractors of Jay Berk, Ph.D., Inc., while they are working for or contracted by Jay Berk, Ph.D., Inc. and for a period of two years post-employment or sub-contract termination.

6. **CONFIDENTIALITY OWNERSHIP**

Jay Berk, Ph.D., Inc. agrees that all financial, statistical, proprietary, or student information provided by the Board or any information that Jay Berk, Ph.D., Inc. may acquire, directly or indirectly, which relates to the Board will be kept confidential and not used by or released to any third party or parties without the prior written consent of the Board.

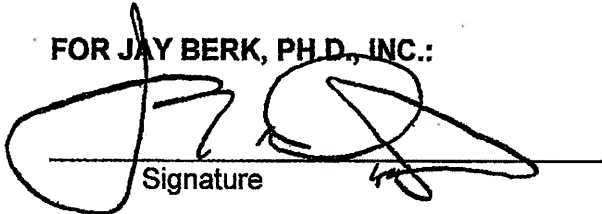
7. **ADDITIONAL CONCERNS**

- A. Jay Berk, Ph.D., Inc. agrees to comply with the obligations under the Family Educational Rights to Privacy Act (FERPA) and the Health Insurance Portability and Accountability Act (HIPAA) to safeguard student records and any personal health information of students.
- B. Jay Berk, Ph.D., Inc. represents and warrants that it possesses the requisite number of qualified personnel to provide such services.
- C. Jay Berk, Ph.D., Inc. shall not discriminate against any individual on the basis of age, race, gender, religion, national origin, or disability.
- D. Neither party may assign, modify, or subcontract this Agreement (or any right or interest herein) without the prior written consent of the other party.
- E. This Agreement shall be binding upon and inure to the benefit of the parties hereto, their successors and permitted assigns.
- F. The paragraph headings are for convenience only and shall not affect the interpretation of this Agreement.
- G. The validity, construction, and performance of this Agreement shall be determined in accordance with the laws of the State of Ohio.

H. This Agreement contains the entire agreement between the parties in respect to the service to be provided hereunder, and there are no representations, understandings, or agreements, oral or written, which are not included herein.

This Agreement has been entered into following full discussion and disclosure, as well as the opportunity for full consultation with the Board and Jay Berk, Ph.D., Inc.'s respective legal counsel, and that as a result of a full understanding of the contents of this Agreement, the parties voluntarily and without duress enter this Agreement. This Agreement shall be legally binding upon the Board and Jay Berk, Ph.D., Inc.

**FOR JAY BERK, PH.D., INC.:**

  
\_\_\_\_\_  
Signature

\_\_\_\_\_  
President  
Title

\_\_\_\_\_  
Date

**FOR BRECKSVILLE-BROADVIEW HEIGHTS DISTRICT BOARD OF EDUCATION:**

\_\_\_\_\_  
Signature

\_\_\_\_\_  
Pupil Services Director  
Title

\_\_\_\_\_  
Date